



POLICE DEPARTMENT

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In the Matter of the Disciplinary Proceedings :

- against - : FINAL

Police Officer Tanya Rodriguez : ORDER
Tax Registry No. 939085 : OF
Patrol Borough Queens North : DISMISSAL
-----X

Police Officer Tanya Rodriguez, Tax Registry No. 939085, having been served with written notice, has been tried on written Charges and Specifications numbered C-035504, as set forth on form P.D. 468-121, dated September 30, 2025, and after a review of the entire record, Respondent is found Guilty of the charged misconduct.

Now therefore, pursuant to the powers vested in me by Section 14-115 of the Administrative Code of the City of New York, I hereby DISMISS Police Officer Tanya Rodriguez from the Police Service of the City of New York.


HONORABLE JESSICA S. TISCH
POLICE COMMISSIONER

EFFECTIVE: 10/17/25



POLICE DEPARTMENT

October 16, 2025

-----X
In the Matter of the Charges and Specifications :

- against - :

Police Officer Tanya Rodriguez :

Tax Registry No. 939085 :

Patrol Borough Queens North :

Case No.

C-035504

-----X
At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Jeff S. Adler
Assistant Deputy Commissioner Trials

APPEARANCES:

For the Department: Jamie Moran, Esq.
Department Advocate's Office
One Police Plaza, Room 402
New York, NY 10038

For the Respondent: Tried *in absentia*

To:

HONORABLE JESSICA S. TISCH
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

CHARGES AND SPECIFICATIONS

1. Police Officer Tanya Rodriguez, while assigned to Patrol Borough Queens North, on or about September 26, 2025, during an official Department interview conducted by Inspector Dawit Fikru, did fail to answer questions directed to her related to an incident that occurred at her residence in Nassau County.

A.G. 304-06, Page 1, Paragraph 1

PROHIBITED CONDUCT

A.G. 318-11

INTERROGATION OF
MEMBERS OF SERVICE

2. Police Officer Tanya Rodriguez, while assigned to Patrol Borough Queens North, on or about September 26, 2025, during an official Department interview conducted by Inspector Dawit Fikru, did fail to comply with a lawful order issued by Inspector Fikru to answer questions directed to her.

A.G. 304-03, Page 1, Paragraph 2

COMPLIANCE WITH
ORDERS

A.G. 304-06, Page 1, Paragraph 1

PROHIBITED CONDUCT

REPORT AND RECOMMENDATION

The above-referenced matter was set down for trial on October 14, 2025. Respondent did not appear for the trial, nor did an attorney appear on her behalf, and an inquest hearing was held in Respondent's absence. The Department called Lieutenant Andrew Jackson of IAB as a witness. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having evaluated all of the evidence in this matter, I find Respondent Guilty of the charges, and recommend a penalty of Termination.

ANALYSIS

Respondent faces charges stemming from her refusal to answer questions, and her failure to comply with an order to do so, at her official Department interview on September 26, 2025.

Procedural History

On October 9, 2025, this matter was conferenced before the court for the purpose of scheduling a trial. Respondent did not appear, the Department Advocate stated that they had been informed that union counsel would not be representing her, and no attorney appeared on her behalf. The Department Advocate informed the court that a copy of the charges and specifications, along with a notice of the conference date, had been served on October 8 as follows: since Respondent could not be located for personal service, a police officer with the Advocate's Office served Respondent through alternate means. Specifically, he left the notification in the mailbox at Respondent's last known address in East Meadow.¹ However, since there had been a fire at that location on September 19, the officer from the Advocate also delivered the notification to the 105 Precinct, where Respondent, who was suspended on September 26, was required to report every Monday, Wednesday, and Friday. According to the Advocate, Respondent did not appear on those days. The notification also was handed to Respondent's father at a home he owns in Woodside, Queens; the father stated that Respondent was not present, but that she was "okay." The Advocate submitted to the court an Affidavit of Service reflecting these efforts. (Dept. Ex. 1)

Based on these representations, the court held that the Advocate had made appropriate efforts to serve Respondent with the charges and notify her of the conference date. The Advocate then requested an expedited trial, since Respondent, who has more than 20 years of service with the Department, had submitted her papers for retirement, which will be effective on

¹ Pursuant to Administrative Guide section 304-16, all MOS have a duty to file with the Department any change in address. According to the Department Advocate, no such update was filed by Respondent.

October 22, 2025. The court granted the Advocate's application for an expedited trial, and the matter was adjourned to October 14, 2025, for that purpose.

On October 14, 2025, Respondent again did not appear, nor did an attorney on her behalf. The Advocate informed the court that on October 10, the same officer from their unit had served notice of the trial date on Respondent through alternate service. Specifically, the notice was again left at Respondent's last known residence in East Meadow, at the 105 Precinct, and at the address in Woodside, Queens (this time the papers were left with Respondent's aunt). An Affidavit of Service reflecting these efforts was submitted to the court. (Dept. Ex. 2) Additionally, the Advocate informed the court that an ICO at the command where Respondent was assigned before being suspended was notified of the trial date, but he was unable to reach Respondent. Further, a call was placed, and a text message sent, to a phone number listed by Respondent with the Department; no response was received. Based on these representations, the court found that Respondent had been served with notice of the trial date in a manner reasonably calculated to achieve actual notice to her, and the matter proceeded to trial in her absence.

Evidence and Charges

On the evening of September 19, 2025, a fire occurred at the East Meadow home where Respondent resided with her husband, a lieutenant with the NYPD ("the husband"). Lieutenant Andrew Jackson of IAB testified that he was assigned to investigate the matter. When the fire was initially reported, the husband was missing, though he later was located in Baltimore, Maryland. According to Lieutenant Jackson, the husband was suspected of possibly setting the fire, and Respondent, who was at the scene, was initially considered a witness with respect to the timeline of events surrounding the fire. IAB scheduled an official interview with Respondent for September 26, 2025. (Tr. 24, 31-32)

On that date, Respondent appeared for the interview along with defense counsel and a union delegate. Recordings of that interview, which consisted of four parts, along with the accompanying transcripts, were introduced into evidence. (Dept. Exs. 3-6) According to Lieutenant Jackson, Respondent was warned at the outset that a failure to answer the questions would subject her to disciplinary charges and could result in her dismissal from the Department. Respondent initially did answer, but at some point refused to respond to any additional questions, despite being ordered to do so. Respondent was again warned of the implications of failing to respond, and when she continued to refuse to answer questions, she was informed that she was suspended. (Tr. 25, 27-30)

The recordings and transcripts in evidence are consistent with Lieutenant Jackson's testimony. Before the questioning commenced, Respondent was reminded of the provisions of Section 318-11 of the Administrative Guide, including that she was required to answer questions directed toward her by the investigators, and that her refusal to do so would subject her to departmental charges which could result in her dismissal from the Department. (Dept. Ex. 3A at 3) Respondent confirmed that she understood the warnings, and then was questioned about the events of September 19, the evening of the fire.

Respondent confirmed that she called 911 when she discovered her house in East Meadow was on fire at approximately 2345 hours. She also described the sequence of events leading up to that point. She claimed that about 25 minutes earlier, she had left the house along with her son and daughter, with the intention of driving to the house owned by her father in Queens. The plan was to leave her son with his aunt in Queens, while Respondent and her daughter drove to visit a college in Boston the following morning. According to Respondent, her husband was home in the house when they departed. They headed to Queens in two separate

cars: she and her son were in one vehicle, while her daughter was driving another. (Dept. Ex. 3A at 6-8, 19-20)

However, while en route to Queens, Respondent decided to reverse course and return to East Meadow. Respondent initially claimed that the reason she turned around was because she realized she forgot a bag at home. When she got back to the house, she observed it was on fire, and her husband was not there. Respondent called 911, and spoke with responding officers from Nassau County. (Dept. Ex. 3A at 7, 20-21)

At this point during the IAB interview, they took a 20-minute break. When they returned, Inspector Dawit Fikru joined the questioning and reviewed the sequence of events with Respondent in more detail. This time, however, she gave a different account of why she pulled over and decided to return home. Respondent claimed that she looked at the time and thought that it would be better to leave for Boston from her own house in the morning rather than driving to Queens at night, and signaled her daughter to pull over to tell her the new plan. She also stated that she wanted to get the address of the school they were visiting from her daughter so she could type it into her phone for directions. Immediately following these inconsistent responses, counsel for Respondent requested a break to speak with his client. Respondent and counsel left the room, disregarding the Inspector's order to remain and continue with the line of questioning. (Dept. Ex. 4A at 18-19)

When Respondent returned to the interview room, her counsel informed the Inspector that she would not be answering any additional questions, even though she understood that she would be suspended based on her failure to do so. Respondent confirmed that it was her intention not to answer any questions. The Inspector informed her that he wanted to ask her about the details of her 911 call, and about a statement she allegedly provided to a Nassau

County officer that she actually drove around the corner and stayed there for approximately 45 minutes before the fire, as opposed to driving to Queens. Respondent stated that she would not answer those questions. (Dept. Ex. 5A at 2-3)

Following another five-minute break, Respondent again was informed that pursuant to Section 318-11 of the Administrative Guide, she could be subjected to dismissal from the Department for her refusal to answer questions. She stated that she understood. The Inspector then ordered her to answer a question about her 911 call, which she refused to answer, at which point the Inspector informed her that she was suspended from duty. (Dept. Ex. 6A at 2-3)

Specification 1 charges Respondent with refusing to answer questions posed to her during her official Department interview on September 26, 2025, while Specification 2 charges Respondent with her failure to follow the Inspector's order to answer the questions. Section 318-11 of the Administrative Guide requires a member of the service to answer such questions, while Section 304-03 requires an MOS to obey lawful orders and instructions from a supervising officer.

Here, the credible evidence has established that after initially providing responses, Respondent later refused to answer questions during her official Department interview. In doing so, she disobeyed a lawful order from an Inspector directing her to answer the questions. Lieutenant Jackson, who was present at the interview, credibly testified regarding what transpired, and his testimony was consistent with the recordings of the interview in evidence. Specifically, Respondent twice was read the appropriate warnings as to the implications of her failure to answer questions, and she confirmed she understood. Nevertheless, Respondent refused to answer questions about the fire that occurred at her home on September 19, 2025.

Even after being ordered by the Inspector to answer, Respondent, with her counsel present, persisted in her refusal. Accordingly, I find Respondent Guilty of Specifications 1 and 2.

PENALTY

In order to determine an appropriate penalty, this tribunal, guided by the Department's Disciplinary System Penalty Guidelines, considered all relevant facts and circumstances, including potential aggravating and mitigating factors established in the record. Respondent's employment history also was examined. *See* 38 RCNY § 15-07. Information from her personnel record that was considered in making this penalty recommendation is contained in an attached memorandum.

Respondent, who was appointed to the Department on July 11, 2005, has been found guilty of refusing to answer questions at her official Department interview, and failing to comply with a lawful order from an Inspector to do so. The Department was investigating serious allegations surrounding a fire that occurred at the home of Respondent and her husband under suspicious circumstances. As part of their investigation, the questioners were seeking to obtain important information from Respondent regarding the timeline of what transpired. After initially providing responses, some of which were inconsistent, Respondent stated that she was refusing to answer any further questions. The Inspector attempted to ask her about a different account she had provided on the night of the incident, but Respondent refused to answer those questions as well, despite being ordered to do so. Based on her actions, the Department Advocate is seeking a penalty of Termination.

The goal of any internal investigation is to get to the truth. By refusing to answer questions, Respondent undermined the Department's efforts to learn the relevant facts surrounding the fire. Under these circumstances, Respondent's egregious misconduct constituted

conduct prejudicial to the good order and efficiency of the Department, warranting the aggravated penalty of Termination. Moreover, this tribunal has consistently held that failure to comply with an order to answer questions at an official Department interview is grounds for termination. *See Disciplinary Case No. 2020-21869* (March 24, 2020) (Twenty-three-year detective with no disciplinary record dismissed from the Department after refusing a lawful order to answer questions during an official Department interview).

Taking into account the totality of the facts and issues in this matter, I recommend a penalty of Termination from the Department.

Respectfully submitted,

A handwritten signature in blue ink, appearing to read 'Jeff S. Adler', with a long horizontal flourish extending to the right.

Jeff S. Adler
Assistant Deputy Commissioner Trials

APPROVED

A handwritten signature in black ink, appearing to read 'Jessica S. Tisch', written over a date stamp.

OCT 17 2025
JESSICA S. TISCH
POLICE COMMISSIONER



POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials

To: Police Commissioner

Subject: SUMMARY OF EMPLOYMENT RECORD
POLICE OFFICER TANYA RODRIGUEZ
TAX REGISTRY NO. 939085
DISCIPLINARY CASE NO. C-035504

Respondent was appointed to the Department on July 11, 2005. On her three most recent annual performance evaluations, she was rated “Exceptional” for 2022, 2023, and 2024.

Respondent has no formal disciplinary history.

In connection with the instant matter, she was suspended without pay on September 26, 2025. Respondent remains suspended to date.

For your consideration.

Jeff S. Adler
Assistant Deputy Commissioner Trials